

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 874

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO YOUTH SERVICE ORGANIZATIONS; AMENDING TITLE 16, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 25, TITLE 16, IDAHO CODE, TO DEFINE TERMS, TO ESTABLISH YOUTH PROTECTION REQUIREMENTS, TO ESTABLISH PROVISIONS REGARDING TRAINING AND POLICIES, TO PROVIDE FOR PENALTIES, TO ESTABLISH PROVISIONS REGARDING INSURANCE, AND TO PROVIDE THAT THERE SHALL BE NO EFFECT ON AN EXISTING CAUSE OF ACTION AND NO DUTY OF REASONABLE CARE CREATED; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 16, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 25, Title 16, Idaho Code, and to read as follows:

CHAPTER 25

YOUTH SERVICE ORGANIZATIONS

16-2501. DEFINITIONS. As used in this chapter:

- (1) "Child" means an individual under eighteen (18) years of age.
- (2) "Registered sex offender check" means a search of:
 - (a) The state sexual offender registry as described in chapter 83, title 18, Idaho Code; and
 - (b) The national sex offender public website administered by the United States department of justice.
- (3) "Sexual abuse" means conduct constituting an offense pursuant to section 18-1506, 18-1507, 18-1508, 18-1508A, 18-6601, or 18-6604, Idaho Code, when committed against a child.
- (4) "Youth service organization" means any organization that has adult workers supervising children. "Youth service organization" shall not include any person who is required to conduct a background check on employees or volunteers under any other provision of state or federal law.
- (5) "Youth worker" means an individual:
 - (a) Who is eighteen (18) years of age or older;
 - (b) Who is employed by or volunteers with a youth service organization; and
 - (c) Whose responsibilities as an employee or volunteer with the youth service organization give the individual regular and repeated care, supervision, guidance, or control of a child or children:
 - (i) For more than six (6) hours in any twenty-four (24) hour period; or
 - (ii) On more than one (1) day within a twelve (12) month period.

16-2502. YOUTH PROTECTION REQUIREMENTS. (1) A youth service organization shall not employ a youth worker or allow an individual to volunteer as

1 a youth worker unless the youth service organization has completed a regis-
2 tered sex offender check for the individual.

3 (2) A youth service organization shall require a potential youth worker
4 to provide the individual's full name and a current government-issued iden-
5 tification to facilitate the registered sex offender check required by sub-
6 section (1) of this section.

7 (3) If an individual is registered on the state sexual offender reg-
8 istry or the national sex offender public website, a youth service organiza-
9 tion shall not employ the individual as a youth worker or allow the individ-
10 ual to volunteer as a youth worker.

11 16-2503. TRAINING -- POLICIES. (1) A youth service organization shall
12 provide and a youth worker shall complete training in sexual abuse identifi-
13 cation and reporting that includes, at a minimum:

- 14 (a) Identification of grooming behaviors;
- 15 (b) Mandatory reporting requirements as provided in Idaho law; and
- 16 (c) Procedures for internal reporting.

17 (2) A youth service worker shall complete the training required in sub-
18 section (1) of this section no less than once every twenty-four (24) months.

19 (3) A youth service organization shall implement written child abuse
20 prevention policies and procedures that include:

- 21 (a) Policies to ensure that a registered sex offender check is con-
22 ducted for each youth worker before the youth worker is employed or
23 allowed to volunteer; and
- 24 (b) Policies to ensure the reporting of suspected sexual abuse.

25 16-2504. PENALTY. (1) Beginning July 1, 2026, in any lawsuit against a
26 youth service organization arising out of the molestation or sexual abuse of
27 a child committed by a youth worker against a child who was in the custody or
28 care of the youth service organization, the youth service organization shall
29 be considered negligent if:

30 (a) (i) The youth service organization failed to conduct a regis-
31 tered sex offender check for the youth worker who committed the mo-
32 lestation or sexual abuse; and

33 (ii) A registered sex offender check for the youth worker would
34 have revealed that the youth worker was registered on the state
35 sexual offender registry or the national sex offender public web-
36 site; or

37 (b) (i) The youth service organization conducted a registered sex
38 offender check for the youth worker who committed the molestation
39 or sexual abuse;

40 (ii) The registered sex offender check revealed that the youth
41 worker was registered on the state sexual offender registry or the
42 national sex offender public website; and

43 (iii) The youth service organization nevertheless employed the
44 youth worker or allowed the youth worker to volunteer:

- 45 1. For more than six (6) hours in any twenty-four (24) hour
46 period; or
- 47 2. On more than one (1) day within a twelve (12) month pe-
48 riod.

1 (2) The provisions of subsection (1) (b) of this section shall apply to
2 any temporary youth worker who works any number of hours on only one (1) day
3 within a twelve (12) month period.

4 (3) Nothing in this section shall excuse the plaintiff in a lawsuit de-
5 scribed in subsection (1) of this section from proving all other elements of
6 any pleaded claim.

7 16-2505. INSURANCE. (1) Before providing liability insurance for a
8 youth service organization in the state, an insurer may do one (1) or more of
9 the following:

10 (a) Request information from the youth service organization demon-
11 strating compliance with the provisions of this chapter as part of the
12 insurer's loss control program; or

13 (b) Require, as a condition of providing insurance, proof that the
14 youth service organization is in compliance with the provisions of this
15 chapter.

16 (2) Nothing in this chapter shall be construed to alter or amend exist-
17 ing obligations under any policy of insurance.

18 16-2506. NO EFFECT ON CAUSE OF ACTION -- NO DUTY CREATED. (1) Nothing
19 in this chapter abrogates any existing cause of action.

20 (2) Nothing in this chapter creates a private right of action or estab-
21 lishes a duty of reasonable care where one would not otherwise exist.

22 SECTION 2. An emergency existing therefor, which emergency is hereby
23 declared to exist, this act shall be in full force and effect on and after
24 July 1, 2026.